

preliminary approval) is sufficient. Counsel goes on to say, “If there are any delays we will be sure to provide those class members who purchased from AMMP [*sic*] additional time to make a claim, opt out or object and we will advise the Court of these issues prior to final approval.” (Friedman Decl., ¶ 8.)

Rather than grant preliminary approval that could result in two different timelines depending on the timing of receipt of subpoenaed records, the court on its own motion continues the motion for preliminary hearing once more to be heard on **August 11, 2026 at 8:30 a.m. in Department 32**. Please note the new department. By July 28, 2026, plaintiff shall file and serve a notice of continued hearing and supplemental declaration(s) to update the court on whether the subpoenaed information has been received or negotiated.

10. S-CV-0050979 Pearson, James v. Kaiser Found. Hospitals

Defendants are advised the notice of motion must include notice of the court’s tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion for Summary Judgment or, in the Alternative, Summary Adjudication

Defendants Kaiser Foundation Hospitals and The Permanente Medical Group, Inc. (“Kaiser defendants”) move for summary judgment contending the undisputed facts show they did not violate the ADA, the California Unruh Act, or the California Disabled Persons Act. Plaintiff opposes the motion.

The motion is supported by insufficient notice. A motion for summary judgment “shall be served on all other parties to the action at least 81 days before the time appointed for hearing.” (Code Civ. Proc., § 437c, subd. (a)(2).) Notice is extended by two court days when, as here, service is by electronic means. (Code Civ. Proc., § 1010.6, subd. (a)(2)(B).) Here, the motion was served on the 81st day without accounting for the two additional court days’ notice for electronic service. The motion for summary judgment or adjudication is denied due to insufficient notice.

11. S-CV-0053141 Hostler, Grace v. Ternavsky, Alex

Counsel is advised the notice of motion must include notice of the court’s tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion to Be Relieved as Counsel

The motion to be relieved as counsel is denied without prejudice. Counsel declared they served the client by mail at the client’s last known address, and that they confirmed the address was current by correspondence, addressed to the client at her last known address, which had not been returned undeliverable. However, this act alone is insufficient to demonstrate the address is “current” pursuant to California Rule of Court 3.1362(d). (Cal. Rules of Court, rule 3.1362(d).)